

Clinkit Prop 22 Compliance Policy (published; incorporated into Runner ICA §4)

DRAFT — ATTORNEY REVIEW REQUIRED. Implements Cal. Bus. & Prof. Code §7449 et seq. for Runners in California. Rates verified 2026-07-31 against the CA Treasurer's annual adjustment; re-verify every January (ops runbook §6).

1. Engaged time

Engaged time begins the moment your bid is **accepted** and ends when you complete delivery with **photo proof**. The app records both timestamps automatically (`engaged_start_at` , `engaged_end_at` on every order) — you never log hours manually. Time between deliveries (online, waiting) is not engaged time under Prop 22.

2. Engaged miles

While engaged, the app records your GPS position (~every 5 seconds / 25 meters) including the device-reported accuracy. Miles are computed from fixes accurate to ≤ 50 m; implausible jumps are discarded. **If your GPS is poor, we do not zero your miles** — we substitute a route-based estimate (straight-line store $\rightarrow$ drop-off $\times 1.3$) whenever the recorded trail covers less than half the expected route. Every order shows which method was used (`milesSource: gps | estimated`).

3. Earnings guarantee (the floor)

For each earning period (**14 days**), we compare your net earnings — your bid markup + delivery fees – the 5% platform fee + **100% of tips** (item reimbursements are excluded; they are expense pass-throughs) — against:

$120\% \times \text{applicable minimum wage} \times \text{engaged hours} + \$0.37 \times \text{engaged miles (2026 rate)}$

Statewide 2026 minimum wage is \$16.90/hr $\rightarrow$ an engaged-hour floor of **\$20.28**; where a city ordinance sets a higher minimum wage, the higher wage applies. If your net earnings are below the floor, Clinkit pays the difference **no later than the next earning period** via your Stripe account. Your live standing is always visible: app $\rightarrow$ Earnings $\rightarrow$ "Prop 22 guarantee" (`GET /api/runners/prop22`).

4. Healthcare stipend

Averaged over a calendar quarter: ≥ 25 **engaged hours/week** $\rightarrow$ stipend equal to 100% of the average Covered California bronze-plan employer contribution; **15–24.9 h/wk** $\rightarrow$ 50%; under 15 $\rightarrow$ none. Proof of current health coverage is required per statute; paid quarterly.

5. Other Prop 22 protections we implement

Occupational-accident insurance (\$1M) while engaged · anti-discrimination and sexual- harassment policy applies to the platform relationship · no retaliation for rejecting requests · rest policy: the app warns at 10 cumulative engaged+online hours and enforces a 6-hour break at 12, per §7467 · written deactivation appeal path (ops runbook §1).

6. What this does not change

You remain an independent contractor: you choose when to work, which requests to accept, what markup to bid, and you may work for competitors — including simultaneously.

Sources: [CA Treasurer — Prop 22 per-mile annual adjustment \(\\$0.37 for 2026\)](#), [adjustment notice \(PDF\)](#), [Bloomberg Law overview of the Prop 22 earnings floor](#).